

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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DONESA PARRISH, as administrator of the estate of
RASHEEM PARRISH,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, CAPTAIN BRIAN
MCMAHON, SERGEANT PATRICK O'NEILL, SHIELD
#5092, LIEUTENANT TIMOTHY FARELL,
LIEUTENANT JASON SCHLEYER, SERGEANT
THOMAS SHAFFER, #3177, POLICE OFFICER
JOSEPH CRUZADO, #11022, SERGEANT NICHOLAS
VANDYKE, POLICE OFFICER COURTNEY
CUMMINGS

Defendants.

**FIRST AMENDED
COMPLAINT AND
JURY DEMAND**

07 CV 440

ELECTRONIC FILING CASE

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PRELIMINARY STATEMENT

1. This is a civil rights action in which plaintiff seeks relief for the violation of his rights secured by 42 USC §1983, the Fourth and Fourteenth Amendments to the United States Constitution, and the laws of the State of New York.

2. The claim arises from a March 26, 2006 incident in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to, inter alia, wrongful death, excessive force, assault and battery.

3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION

4. This action is brought pursuant to 28 USC §1331, 42 USC §1983, and the Fourth and Fourteenth Amendments to the United States Constitution.

5. The amount in controversy exceeds \$75,000.00 excluding interest and costs.

6. Venue is laid within the United States District Court for the Southern District of New York in that Defendant City of New York is located within and a substantial part of the events giving rise to the claim occurred within the boundaries of the Southern District of New York.

PARTIES

7. At the time of this incident, and at all times here relevant, decedent RASHEEM PARRISH resided in the County of Queens, City and State of New York.

8. Prior to the commencement of this action, plaintiff DONESSA PARRISH was granted letters of limited administration for the estate of decedent RASHEEM PARRISH, by order of the Honorable Robert L. Nahman, judge of the Queens Surrogate Court.

9. In bringing this action against the above named defendants, plaintiff continues to act in her representative capacity on behalf of the estate of RASHEEM PARRISH.

10. The City of New York is a municipal corporation organized under the laws of the State of New York.

11. New York Police Commissioner Raymond Kelly ("the Commissioner") was at all times here relevant the Commissioner of the New York City Police Department, and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers, including the other individual defendants. The Commissioner is sued in his individual and official capacities.

12. Captain Brian McMahaon was at all times here relevant the Commanding Officer

of the 101st Precinct and, as such, was a policy maker with respect to training, supervision, and discipline of NYPD officers within the precinct, including the other individual defendants.

Captain McMahon is sued in his individual and official capacities.

13. All other individual defendants are members of the NYPD, and are sued in their individual and official capacities.

14. At all times here mentioned defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

NOTICE OF CLAIM

15. Within 90 days of the events giving rise to this claim, plaintiff filed written Notice of Claim with the New York City Office of the Comptroller. Over 30 days have elapsed since the filing of that notice, and this matter has not been settled or otherwise disposed of.

FACTUAL ALLEGATIONS

16. On March 25, 2006, at approximately 8:00 p.m., decedent was in the vicinity of Beach 22nd St. and Mott Avenue, Far Rockaway, NY when he was approached, searched and detained by the defendant police officers without reasonable suspicion, probable cause or with any reasonable belief that the officers were in danger.

17. The defendant officers assaulted and battered decedent, causing serious injuries.

18. The decedent was shot by defendant officer John Doe without lawful reason, justification or provocation. The gunshot, which entered decedent's lower back, resulted in his death. The shooting of decedent was without probable cause.

19. The aforementioned shooting was performed knowingly, intentionally, willfully and maliciously.

20. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during said events.

21. During all of the events above described, defendants acted maliciously and with intent to injure decedent.

22. As a direct and proximate result of the acts of defendants, decedent suffered the following injuries and damages:

a. Violation of his rights pursuant to the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;

b. Violation of his right to Due Process of Law under the Fourteenth Amendments to the United States Constitution;

c. Physical pain and suffering, including pre-death pain and suffering,

d. Emotional trauma and suffering, including fear, extreme emotional distress and horror;

g. Loss of liberty;

h. Attorney's and court fees.

FIRST CAUSE OF ACTION
(42 USC § 1983)

23. Paragraphs one through twenty two are here incorporated by reference.

24. Defendants have deprived decedent of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC § 1983.

25. Defendants' conduct deprived decedent of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution. In particular, he was deprived of his right to due process of law, of his right to happiness, to liberty, to be free from physical injury and the unwarranted use of physical force, and his right to life.

26. Plaintiff has been damaged as a result of defendants' wrongful acts in an amount exceeding the jurisdictional limits of this court.

SECOND CAUSE OF ACTION
(MUNICIPAL LIABILITY)

27. Paragraphs one through twenty-six are here incorporated by reference.

28. The City, the Commissioner and the Captain are liable for the damages suffered by plaintiff as a result of the conduct of their employees, agents, and servants.

29. The City, the Commissioner and the Captain knew or should have known of their employees', agents, or servants' propensity to engage in the illegal and wrongful acts detailed above.

30. The aforesaid event was not an isolated incident. The City, the Commissioner and the Captain have been aware for some time (from lawsuits, notices of claim and complaints filed with the Civilian Complaint Review Board) that many of their police officers are insufficiently trained on the proper basis for an arrest, observations required to support probable cause and proper use of force, particularly deadly force. The City, Commissioner and Captain are further aware, from the same sources, that a "wall of silence" exists by which police officers assault and use deadly force on citizens without fear of reprisal. The City, Commissioner and Captain fail to discipline officers for not reporting fellow officers' misconduct that they have observed, and they fail to discipline officers for making false statements to disciplinary agencies.

Further, there is no procedure to notify individual officers, or their supervisors, of unfavorable judicial review of their conduct. Without this notification, improper search and seizure practices and incredible testimony go uncorrected. Additionally, the City, Commissioner and Captain have isolated their law department from the discipline of police officers, so that civil suits against police officers for actions taken in their capacity as police officers have no impact on the officers' careers, regardless of the outcome of the civil actions. The City is aware that all of the aforementioned has resulted in violations of citizens' constitutional rights. Despite such notice, the City has failed to take corrective action. This failure and these policies caused the officers in the present case to violate the decedent's civil rights, without fear of reprisal.

31. The City, Captain and the Commissioner knew or should have known that the officers who caused decedent injury had a propensity for the type of conduct that took place in this case. Nevertheless, the City, Captain and Commissioner failed to take corrective action.

32. The City, Captain and Commissioner have failed to take the steps to discipline, train, supervise or otherwise correct the improper, illegal conduct of the individual defendants in this and in similar cases involving misconduct.

33. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of New York City, the Captain and the Commissioner to the constitutional rights of persons within New York City, and were the cause of the violations of decedent's rights here alleged.

34. Defendants City of New York, the Commissioner and the Captain have damaged decedent by their failure to properly train, supervise, discipline, review, remove, or correct the illegal and improper acts of their employees, agents or servants in this and in similar cases involving police misconduct.

35. Plaintiff has been damaged as a result of the wrongful, grossly negligent and illegal acts of the City, the Commissioner and the Captain an amount exceeding the jurisdictional limits of this court.

THIRD CAUSE OF ACTION
(CONSTITUTIONAL TORT)

36. All preceding paragraphs are here incorporated by reference.

37. Defendants, acting under color of law, violated plaintiff's rights pursuant to §§6 and 12 of the New York State Constitution.

38. A damages remedy here is necessary to effectuate the purposes of §§6 and 12 of the New York State Constitution, and appropriate to ensure full realization of plaintiff's rights under those sections.

39. As a result of this violation of his rights guaranteed by the constitution of the State of New York, plaintiff was damaged in an amount exceeding the jurisdictional limits of all the lower courts.

FOURTH CAUSE OF ACTION
(NEGLIGENCE)

40. All preceding paragraphs are here incorporated by reference.

41. The incident described above and the resulting death were caused solely by the negligence, carelessness, and recklessness of defendants City of New York through its agents and employees, and the defendant police officers involved, both directly and vicariously.

42. Such negligence includes improperly and carelessly initiating a confrontation with the decedent RASHEEM PARRISH, which was without probable cause and unwarranted under all the circumstances and in violation of the restrictions and commonly accepted practices of the New York City Police Department; improperly engaging in the use and discharge of a firearm;

improperly and recklessly using excessive physical force in violation of the restrictions and commonly accepted practices of the New York City Police department.

43. The defendants' continued to act negligent and thereby created the condition which gave rise to this shooting by failing to adequately and timely investigate the shooting, by falsely claiming that decedent was shot in the stomach, by participating in an attempt to cover-up said incident, and by failing to create and enforce guidelines and rules governing the conduct of police officers when using their firearms.

44. The defendants were negligent, reckless and careless in assaulting, battering and shooting the decedent, causing his death.

45. By reason of the foregoing, the plaintiff was damaged in an amount exceeding the jurisdictional limits of this court.

FIFTH CAUSE OF ACTION
(NEGLIGENT HIRING AND RETENTION)

46. All preceding paragraphs are here incorporated by reference.

47. Defendants did not exercise reasonable care and diligence in the selection, engagement, employment and training of its agents, servants and employees and were negligent in the hiring, training and retention of the defendant police officers who shot the decedent,

RASHEEM PARRISH.

48. That the defendant city of New York had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendant police officers and continued to employ them and allowed them to be in contact with the public at large.

49. Such negligence caused the death of Rasheem Parrish.

50. By reason of the foregoing, the plaintiff was damaged in an amount exceeding the jurisdictional limits of this court.

SIXTH CAUSE OF ACTION
(WRONGFUL DEATH)

51. All preceding paragraphs are here incorporated by reference.

52. On April 25, 2006, RASHEEM PARRISH died at the age of 20 as a result of defendants' negligence, assault and battery, negligent hiring and retention, and defendants' violation of decedent's constitutional rights.

53. Decedent RASHEEM PARRISH was survived by his mother, Donessa Parrish. As a result of the foregoing, decedent's estate became responsible for the expense of a funeral and has suffered pecuniary loss as a result thereof. Plaintiff, as mother of the decedent, has also been deprived of her constitutional right of parenthood.

54. By reason of the foregoing, the plaintiff was damaged in an amount exceeding the jurisdictional limits of this court.

SEVENTH CAUSE OF ACTION
(ASSAULT AND BATTERY)

55. All preceding paragraphs are here incorporated by reference.

56. Upon approaching decedent, arresting him, and brandishing a firearm, defendants made decedent fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.

57. Defendants engaged in and subjected decedent to immediate harmful and/or offensive touching and battered him.

58. Defendants used excessive and unnecessary force with decedent.

59. Defendants have deprived decedent of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC §1983 and the New York State Constitution.

60. Plaintiff was damaged by defendants' assault and battery in an amount exceeding

the jurisdictional limits of this court.

EIGHTH CAUSE OF ACTION

(SURVIVAL ACTION)

61. All preceding paragraphs are here incorporated by reference.

62. Decedent RASHEEM PARRISH was assaulted and battered by defendants.

63. RASHEEM PARRISH was forced to endure great conscious pain and suffering, and to be attended by physicians and to incur expenses for such medical treatment, before his death.

64. RASHEEM PARRISH filed no action during his lifetime, but under the laws of the State of New York, this action survives and may be asserted by his estate.

65. Plaintiff DONESSA PARRISH claims damages for the conscious pain and suffering and necessary medical expenses incurred by RASHEEM PARRISH prior to his death.

NINTH CAUSE OF ACTION

(FALSE ARREST AND ILLEGAL IMPRISONMENT)

66. The preceding paragraphs are here incorporated by reference.

67. Defendants subjected decedent to false arrest, false imprisonment, and deprivation of liberty without probable cause.

68. Defendants deprived decedent of his civil, constitutional and statutory rights and conspired to deprive him of such rights and are liable to plaintiff under 42 USC §§1983, New York State common law, and the New York State Constitution.

69. As a result of the false arrest, imprisonment, and deprivation of liberty, decedent was damaged.

WHEREFORE, plaintiff demands judgment against the defendants, jointly and severally, as follows:

A. In favor of plaintiff in an amount exceeding the jurisdictional limits of all the

lower courts for each cause of action;

B. Awarding plaintiff punitive damages in an amount exceeding the jurisdictional limits of all the lower courts for each cause of action,

C. Awarding plaintiff reasonable attorneys' fees, costs and disbursements of this action; and

D. Granting such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff demands a trial by jury.

DATED: Brooklyn, New York
June 13, 2007

TO: New York City
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100 Church Street, 4th floor
New York, NY 10007

Police Commissioner Raymond W. Kelly
1 Police Plaza
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Far Rockaway NY 11691

Sergeant Patrick O'Neill, Shield #5092
Counterterrorism Unit
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Brooklyn NY 11223

Yours, etc.,



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